

Moolchand Saini v. State of U.P. through Secretary, Power Corporation & Others

Allahabad High Court · Division Bench · 21 January 2013 · 2013 SCC OnLine All 13477 : (2013) 99 ALR 754 · C.M.W.P. No. 67919 of 2012 · **Writ petition dismissed on the ground of availability of the alternative remedy of a statutory appeal**

HEADNOTE

A writ petition under Article 226 against a final assessment order made under Section 126 of the Electricity Act, 2003 will ordinarily not be entertained where the aggrieved consumer has the alternative remedy of a statutory appeal under Section 127 of the Act read with Clause 6.8 of the U.P. Electricity Supply Code, 2005. A theft was allegedly detected on checking (25.3.2011), a provisional assessment (3.5.2011) followed, the consumer's objections were rejected, and after a remand the Executive Engineer decided the representation against the consumer (26.9.2012). On the licensee's preliminary objection, the Court accepted that the statutory appeal under Section 127 r/w Clause 6.8 was the appropriate remedy and dismissed the writ petition on that ground, without entering into the merits.

HOLDING-UNITS

INTERPLAY · EA2003::127

Consumer relegated to the s.127 statutory appeal against a final s.126 assessment order

QUESTION

Should a writ petition against a final Section 126 assessment order be entertained where an appeal under Section 127 read with Clause 6.8 of the Code is available?

HOLDING

No, ordinarily not. Section 126 provides for provisional assessment, objections and a final order after hearing; Section 127(1) gives any person aggrieved by the final order a right of appeal, and Clause 6.8 of the Code likewise provides for an appeal against the final assessment. Having regard to the nature of the controversy the Court accepted the licensee's preliminary objection and dismissed the writ petition on the ground of the availability of that alternative remedy, without deciding the merits. ¶ 5-13

LIMITING FACTS

Challenge was to the Executive Engineer's final order dated 26.9.2012 deciding the consumer's representation against a theft-based provisional assessment; the statutory appeal under s.127 r/w Clause 6.8 was available and untried.

PRINCIPLE TAGS

relegate-to-statutory-remedy A writ against a final s.126 assessment order is not entertained where the s.127 appeal (r/w Clause 6.8 of the Code) is available and untried. ¶ 5-13

alternative-remedy-relegation Existence of a statutory appeal, though not an absolute bar to a writ, is a sufficient ground to decline to entertain the petition in an assessment matter of this nature. ¶ 6-12

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — THE MERITS OF THE THEFT DETECTION AND THE FINAL ASSESSMENT

Left to be agitated in the statutory appeal under s.127 r/w Clause 6.8; the Court expressed no opinion. ¶ 12